IN THE SUPREME COURT OF INDIA
CRIMINAL APPELLATE JURISDICTION
CRIMINAL APPEAL NO. 882 OF 2018
STATE OF PUNJAB ... APPELLANT
VERSUS
SATPAL SINGH ... RESPONDENT
R.F. NARIMAN, J.
1. This criminal appeal by special leave under Article 136 of the Constitution challenges the acquittal of the respondent by the High Court of Punjab and Haryana for offences under Section 409 of the Indian Penal Code and Section 13(1)(c) of the Prevention of Corruption Act, 1988.
2. The prosecution alleged that while serving as Cashier in the Department of Irrigation, the respondent misappropriated public funds amounting to Rs. 4,50,000/- between June 2010 and August 2011.
3. The trial court convicted the respondent. However, the High Court held that the prosecution failed to examine the principal auditor who prepared the reconciliation ledger, rendering the audit report inadmissible under Section 67 of the Evidence Act.
4. It is settled law that in an appeal against acquittal, this Court will interfere only if the findings of the High Court are perverse or palpably erroneous. Suspicion, however grave, cannot substitute proof beyond reasonable doubt.
5. We find no substantial ground to dislodge the view taken by the High Court. The Criminal Appeal is accordingly dismissed.